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YP PayPerCall

Report of Evidence of Use

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Patent Number: USUS7953416B2

Claim Number: (1

52. A process for dynamic routing of customer contacts to service providers via a telephone, comprising the steps of: establishing accounts for a plurality of service providers that provide non-telephonic -based services; permitting the plurality of service providers to bid against one another for a live telephone call based on a customer per-contact charge; creating a contact list comprised of the service providers ranked from the highest bidder service provider to the lowest bidder service provider; receiving a live telephone contact from a customer; routing the live telephone contact from the customer for a live conversation with the highest ranked bidder service provider on the contact list; and charging the service provider account receiving the live telephone contact the customer per-contact amount bid by the service provider.

Element 1:

52. A process for dynamic routing of customer contacts to service providers via a telephone, comprising the steps of:

YP Pay Per Call® Pay Per Call is an advertising service that connects search consumers with service providers by phone. Service Providers don't need a website to participate because Pay Per Call ads, which appear in prominent search engine results and directories, drive business directly to service provider's phone. For search engine and directory consumers, Pay Per Call works like this: Consumers search for merchants or service providers in a designated geographic area. Then, relevant Pay Per Call ads appear in search results. When service provider's ads appear in search results, consumers can reach service providers via the toll-free numbers that YP Pay Per Call® provides in service provider's Pay Per Call ads. These toll-free numbers forward calls directly to service provider's business number as well as track calls for billing and reporting purposes. Since, YP considers bidding and availability of a service provider at particular location and at a particular time, it means the call forwarding to a service provider happens dynamically.

Ref 1: http://paypercall.yp.com/documents/partner/faq.asp

Element 2:

establishing accounts for a plurality of service providers that provide non-telephonic -based services;

T start using YP's pay per call service, a service provider has to sign up for an account with YP. That signing will provide the service provider with an online market place, where the service provider can create his ad and also bid for it.

Ref 1: http://paypercall.yp.com/Documents/Help/faq.asp

Element 3:

permitting the plurality of service providers to bid against one another for a live telephone call based on a customer per-contact charge;

Using YP's online market place, service providers can bid against each other for placing their ad in YP's network. The bidding is done for prominence in search results.

The references show that only one call only ad is present in a search page. Hence, it is highly likely that service providers compete among each other with bids to place their ad in the top position. It also provides a interface by which, service providers can see competitor's bid.

Ref 1: http://paypercall.yp.com/Registration/GetStarted.aspx

Ref 2: http://paypercall.yp.com/documents/partner/faq.asp

Ref 3: http://paypercall.yp.com/documents/help/popup/ppcDemo/ppcAdDemo-7.asp

Element 4:

creating a contact list comprised of the service providers ranked from the highest bidder service provider to the lowest bidder service provider;

From the reference below, it is evident that YP creates a list of service providers along with their bids, using which YP decides on placing an ad. The list of service providers and their bids, is made available to a new service provider, using which the new service provider can plan his bid for the YP auction. The list stores the competitors bid from highest bidder to the lowest bidder.

Ref 1: http://paypercall.yp.com/documents/help/popup/ppcDemo/ppcAdDemo-7.asp

Element 5:

receiving a live telephone contact from a customer;

When a service provider creates a YP ad, the ad is provided with a toll free number. When a consumer searches for a particular type of service provider, the YP Pay epr call is provided to them on the top position, along with the YP toll free number. When the consumer clicks on that ad, a live telephone call gets initiated.

Ref 1: http://paypercall.yp.com/documents/partner/faq.asp

Element 6:

routing the live telephone contact from the customer for a live conversation with the highest ranked bidder service provider on the contact list; and

The toll free number that is placed in a pay per call add is used by YP to track and manage the pay per call analytics. YP receives a customer's call on the toll-free number featured on the pay per call ad and then forwards the call to the business phone number of the associated service providers. Since, there are instances of search showing only one pay per call ad on a search page, it is evident that the ad placed is from the highest bidder for that service provider of that location for the keyword searched by the customer. Hence, the call to the YP toll-free number will be forwarded to the highest bidder among the service provider of that ad.

Also, YP actively announce that they provide self service auction, which is a clear indication that the highest bidder is considered for placing a pay per call ad.

Ref 1: http://paypercall.yp.com/Registration/GetStarted.aspx

Ref 2: http://paypercall.yp.com/documents/help/faq.asp#question3

Ref 3: https://paypercall.yp.com/documents/help/OptimizeAd.asp

Ref 4: https://paypercall.yp.com/documents/Help/Popup/Popup_MemberAgreement.asp

Element 7:

charging the service provider account receiving the live telephone contact the customer per-contact amount bid by the service provider.

YP's bidding platform provides service providers with an option of dynamic bidding. Using this feature, a service provider can set a maximum amount the service provider wants to pay to receive a call, and at the same time select automatic bidding, which increases the bid to outbid the closest competitor till the time, the competitor do not bid over the maximum limit set. Hence, when a service provider's ad is selected to be displayed as YP pay per call ad, it indicates that the service provider has outbid the competitors and the bid of the service provider is the highest and hence, that bid amount will be charged to the service provider.

Ref 1: https://paypercall.yp.com/documents/help/PricePerCall2.asp

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End of Report

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Our hourly rate is: $

Non-Disclosure Agreement:

We understand that for the purpose of assisting you in collecting data, you may disclose to us certain confidential information that you want to keep confidential; therefore, for good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, we agree as follows:

1. For a period of twelve (36) months from the date we receive your confidential information ("Effective Date"), we will not use or disclose the information, except: (a) in the event that such information (i) comes into the public domain not through us; (ii) is already known to us at the time of disclosure; (iii) is lawfully otherwise learnt or independently developed by us; or (iv) is required to be disclosed by law.

2. Since a breach of our obligations hereunder may result in irreparable harm to you, we agree that upon such breach or threat thereof, you shall be entitled to specific performance and other injunctive relief without posting a bond, and in the event of disclosures required by court order, we shall promptly notify you of the proceeding.

3. This agreement supersedes all prior discussions and writings and constitutes the entire agreement between you and us with respect to the subject matter hereof. This Agreement shall be binding upon the successors and assigns of the respective parties, and may not be modified except by an instrument executed by both parties.

Pankaj Mukhopadhyay